

C

In defining the scope of an official's absolute privilege, this Court has recognized that the sphere of protected action must be related closely to the immunity's justifying purposes. Frequently our decisions have held that an official's absolute immunity should extend only to acts in performance of particular functions of his office. See *Butz v. Economou*, 438 U. S., at 508-517; cf. *Imbler v. Pachtman*, 424 U. S., at 430-431. But the Court also has refused to draw functional lines finer than history and reason would support. See, e. g., *Spalding v. Vilas*, 161 U. S., at 498 (privilege extends to all matters "committed by law to [an official's] control or supervision"); *Barr v. Matteo*, 360 U. S. 564, 575 (1959) (fact "that the action here taken was within the outer perimeter of petitioner's line of duty is enough to render the privilege ap-

court in the absence of expressed congressional intent to provide a damages remedy. See, e. g., *Merrill Lynch, Pierce, Fenner & Smith, Inc. v. Curran*, 456 U. S. 353 (1982); *Middlesex County Sewerage Auth. v. National Sea Clammers Assn.*, 453 U. S. 1 (1981); *California v. Sierra Club*, 451 U. S. 287 (1981). JUSTICE WHITE does not refer to the jurisprudence of implied rights of action. Moreover, the dissent undertakes no discussion of cases in the *Bivens* line in which this Court has suggested that there would be no damages relief in circumstances "counseling hesitation" by the judiciary. See *Bivens v. Six Unknown Fed. Narcotics Agents*, *supra*, at 396; *Carlson v. Green*, 446 U. S. 14, 19 (1980) (in direct constitutional actions against officials with "independent status in our constitutional scheme . . . judicially created remedies . . . might be inappropriate").

Even the case on which JUSTICE WHITE places principal reliance, *Marbury v. Madison*, 1 Cranch 137 (1803), provides dubious support at best. The dissent cites *Marbury* for the proposition that "[t]he very essence of civil liberty certainly consists in the right of every individual to claim the protection of the laws, whenever he receives an injury." *Id.*, at 163. Yet *Marbury* does not establish that the individual's protection must come in the form of a particular remedy. *Marbury*, it should be remembered, *lost* his case in the Supreme Court. The Court turned him away with the suggestion that he should have gone elsewhere with his claim. In this case it was clear at least that Fitzgerald was entitled to seek a remedy before the Civil Service Commission—a remedy of which he availed himself. See *supra*, at 736-739, and n. 17.